

Schwab to the manner and means of service appear in paragraphs 78 through 94 and are also made on information and belief throughout. Specifically, the SAC alleges on information and belief that Schwab and/or J&A authorized multiple prior service attempts and became frustrated when they failed (SAC ¶ 81); declined to rehire process servers who did not succeed (SAC ¶ 82); communicated that frustration to the new process servers, authorized a stakeout, and wanted Wong served even if that meant temporarily restraining him (SAC ¶ 83); wanted Wong temporarily restrained and communicated this to the process servers, and wanted him photographed at the time of service (SAC ¶ 84); knew the process servers would temporarily restrain Wong (SAC ¶ 85); provided instructions the process servers reasonably believed authorized false imprisonment, along with Wong's vehicle description and a twenty-year address history (SAC ¶ 86); intended Wong to be temporarily restrained by imposing deadline pressure and communicating prior failures (SAC ¶ 87); instructed the process servers to follow Wong home and surprise him (SAC ¶ 89); and approved a plan to temporarily restrain Wong and provided his home address to facilitate it. (SAC ¶ 94.)

Here, the general agency allegation in paragraph 11 and the specific allegations connecting Schwab to the manner and means of service are alike made on information and belief. Neither identifies the factual basis for plaintiff's belief as required under the cases.

Plaintiff's aiding and abetting allegations present the same problem. Aiding and abetting requires that the aiding and abettor know the principal's conduct constitutes a breach of duty and give substantial assistance or encouragement to the other to so act. (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 653-54.) The SAC's aiding and abetting allegations in paragraphs 89-91 are made on information and belief without a sufficient factual basis.

Schwab argues that the SAC is further defective because plaintiff fails to allege facts showing that Schwab controlled the manner and means by which the Clausens carried out service. The cases Schwab cites, *Patterson v. Domino's Pizza, LLC* (2014) 60 Cal.4th 474, decided at summary judgment, and *Stevens v. Roman Catholic Bishop of Fresno* (1975) 49 Cal.App.3d 877, decided after a jury trial, concern requirements for proof of an agency relationship and do not state a pleading standard.

The court sustains the demurrer with leave to amend for plaintiff to specifically allege the legal theories on which he seeks to hold Schwab liable for the conduct of the process servers, and the facts supporting those theories. (*San Mateo Union High School District v. County of San Mateo* (2013) 213 Cal.App.4th 418, 441 [if there is a reasonable possibility the defect in the complaint could be cured by amendment, it is an abuse of discretion to sustain a demurrer without leave to amend].)

Disposition

Schwab's demurrer is sustained with leave to amend. Plaintiff may file and serve a third amended complaint within 21 days of the date of this order or within 21 days of service of Schwab's discovery responses (Line 10 below). If he does not do so, the case will be dismissed as against Schwab.

10. 9:00 AM CASE NUMBER: C24-01973
CASE NAME: DAVID WONG VS. JAFFE AND ASHER LLP
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSE TO DISCOVERY**

FILED BY: WONG, DAVID

TENTATIVE RULING:

Plaintiff Wong filed this motion to compel further discovery responses from defendant Schwab as to a set of form interrogatories, a set of requests for admission, and a set of requests for document production. That should properly have been three separate motions. Moreover, plaintiff's brief in support is cursory, conclusory, and uninformative. Although plaintiff is pro per in this lawsuit, he is an attorney and should know better than this. However, the issues are adequately laid out in the separate statements, and the technical flaws do not get in the way of full consideration.

Plaintiff's motion is **granted in part and denied in part**.

Formal responses aside, it is fair to observe that up to this point, Schwab's attitude toward discovery has been that it expects plaintiff's remaining false imprisonment claim to fail early as against Schwab, so that it will put off responding to discovery in hopes of winning the case outright on demurrer. Formally that is found in Schwab's blanket objection that the discovery is premature while Schwab's MJOP (really its demurrer) are pending. In the circumstances of the case, that is not quite as presumptuous and inappropriate as it might generally appear. Wong has been litigating this claim through several iterations and is still unable to state a valid claim against Schwab – and it is far from certain that he will be able to do so even after taking discovery.

However, Wong has at least half a point in tying the demurrer and the discovery motion together. The Court is sustaining the demurrer (Line 9) because, although Wong has alleged conclusions on information and belief, he has not provided the required factual basis for that information and belief. He argues that he cannot be expected to adduce that factual basis when he has been completely stonewalled on discovery from Schwab.

Accordingly, the Court will **grant** the present discovery motion, but only to the extent that Wong's discovery requests could fairly be said to bear on the issue of whether and to what extent Schwab did or didn't authorize or direct the conduct of the Clausens. That means all of Wong's second set of requests for production of documents; requests 1 through 6 of Wong's second set of requests for admissions; and interrogatories 1.1 and 17.1 of Wong's second set of form interrogatories.

Otherwise, discovery from Schwab is premature unless and until Wong is able to allege a legally survivable cause of action against it. The motion is therefore **denied** in all other respects, without prejudice to plaintiff re-propounding the same or other discovery when and if Wong has stated a viable complaint against Schwab. (The Court observes, however, that at least some of the requests appear to have been propounded in bad faith, such as those inquiring into the responding party's alleged damages. The responding party is a defendant, not a plaintiff.)

To the extent that the Court is granting this motion, Schwab is to serve amended verified responses by June 30, and to produce responsive documents by July 14. As a timing exception, discovery requests relating to Schwab's allegations or denials in its responsive pleading (e.g., form interrogatory 15.1) are to be answered 30 days after service and filing of Schwab's answer.

11. 9:00 AM CASE NUMBER: C25-00570
CASE NAME: CYNTHIA DUNHAM VS. AUSTREBERTO PINEDA GOMEZ
HEARING IN RE: FOR PRELIMINARY INJUNCTION
FILED BY:

TENTATIVE RULING:

Parties and counsel to appear, in person, for discussion as to the present situation and what accommodations can be made by agreement or Court order.

12. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EAST BAY MUNICIPAL UTILITY DISTRICT VS. MATT KAUFFMAN
*HEARING ON MOTION IN RE: DISMISS CCP 430.10 AND HOLD PLAINTIFF IN CIVIL CONTEMPT
FILED BY:

TENTATIVE RULING:

The Court **continues** this motion a week, to June 18, 2026 at 9:00 a.m. The Court has not completed its analysis.

13. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: PAULA S. GROHS
FILED BY: ZUCCA, MARK

TENTATIVE RULING:

Moving counsel to appear in person for an in camera hearing as to grounds for withdrawal. The client may also appear if desired.

14. 9:00 AM CASE NUMBER: C25-02753
CASE NAME: LOYED COBB VS. LUCKY STORES (SAVE MART) LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY:

TENTATIVE RULING:

Moving counsel to appear in person for an in camera hearing as to grounds for withdrawal. The client may also appear if desired.

15. 9:00 AM CASE NUMBER: C25-03224
CASE NAME: SHOPS AT TODOS SANTOS, LLC VS. EDWIN TIU
HEARING IN RE: MOTION TO SET ASIDE DEFAULT
FILED BY:

TENTATIVE RULING:

This is a rent collection action for restaurant premises. Defendant Trang Tran is in default but moves pro per to vacate the default. The motion is unopposed, and it is **granted**. Tran may file and serve his